TELECONTRACT (PVT)LTD

Versus

ECONET WIRELESS (PVT) LTD

And

POSTAL & TELECOMUNICATIONS
REGULATORY AUTHORITY OF
ZIMBABWE

HIGH COURT OF ZIMBABWE
COMMERCIAL DIVISION
CHILIMBE J
HARARE 10 & 23 MARCH 2026

Urgent application

M.A. Ruwitah for applicant
M.Mbuyisa for 1st respondent
No appearance for 2nd respondent

CHILIMBE J

BACKGROUND

[1] This application for an interdict was brought on an urgent basis. The applicant alleged that respondent had improperly, and to its great detriment, blocked telecommunication traffic contrary to the parties' written contract. The matters in contention and indeed the arguments before me revolved around the terms of the said contract titled "Interconnection Agreement".

[2] In that regard, I requested that a copy of the Interconnection Agreement in a manipulable format be filed by either or both counsel for the greater convenience of the court appropriately authenticated by them. The request was further predicated on the need for a speedy resolution of the urgent matter before the court.

[3] My request was ignored with neither explanation nor apology from counsel. Whilst I am inclined to let this effrontery lie, I cannot however, dismiss the apprehension that the failure to deliver the said document possibly betrays as exaggerated, the oft-touted capabilities on technology-based solutioning by so many in the jurisdiction?

THE URGENT APPLICATION

[4] On 27 February 2026, I dismissed the first respondent`s objection and ruled that the matter was urgent. I handed down the reasons for such conclusion under judgment number HH 196-26 where I noted the following; -

> The parties and claim before the court
>
> "[1] I will refer to the parties as "Telecontract" (applicant), "Econet" (first respondent), and "Potraz" (second respondent). Telecontract and Econet are corporates registered in terms of Zimbabwe law and economic players in the telecommunications sector. Potraz is their regulator and was established in terms of the Postal and Telecommunications Act [Chapter 12:05]. ("the PTC Act").
>
> [2] Telecontract and Econet are parties to a 2011 agreement titled Interconnection Agreement (ICA)in terms of which Telecontract maintains an active voice interconnection service with Econet for inbound and outbound call termination. Telecontract approached this court on an urgent basis alleging unilateral disruption of the interconnection services by Econet in breach of the terms of the ICA. Telecontract thus seeks the following order; -
>
> "THAT Pending the resolution of the dispute between Applicant and First Respondent by the Second Respondent in terms of the Interconnection Agreement, the First Respondent shall:
>
> 1.1. remove all unauthorized rate limits imposed on the Applicant's traffic.
> 1.2. restore full, uninterrupted interconnection services to the Applicant in line with the Interconnection Agreement.
> 1.3. not impose any further mechanisms that degrade, throttle, or interfere with the Applicant's interconnection services.
> 2. The First Respondent shall pay the costs of this application."
>
> The dispute between the parties

[5] Mr Best Macheka, the Systems and Applications Lead, deposed to the founding affidavit on behalf of Telecontract. The ICA, according to Mr Macheka, was meant to facilitate the seamless exchange of voice and data traffic between the two parties` respective networks. In that regard, Telecontract maintained an active voice interconnection service with Econet. He singled out clauses 3.12.2;3.13 and 7.12 of the ICA as material provisions which obliged both parties to take all necessary steps to avoid disruption to service.

[6] The relationship had served both parties well since 2011, stated Mr Macheka.It generated, so claimed the deponent, "material traffic volumes and revenues" for both parties. In fact, the regulator Potraz encouraged such collaboration between telecommunication networks as part of the quest to sustain continuous service to the convenience of consumers.

[7] Matters progressed satisfactorily until 20 January 2026 when, Telecontract experienced a sudden disruption of traffic. Investigations disclosed no fault from Telecontract` s end. Instead all facts pointed to unilateral termination of traffic by Econet. Following this discovery, Telecontract promptly logged, on 22 January 2026, a fault report- Incident Reference 20260122-00000268 with Econet.

[8] This notification did not, per Mr Macheka, resolve the matter. Thus on 27 January 2026, Telecontract escalated the matter in writing to Econet`s Chief Executive Officer demanding the immediate restoration of full service. This escalation followed the dispute resolution matrix set out in the ICA stated Mr Macheka. As at 10 February 2026, (the date of deposing the affidavit), no response had been received, claimed Mr. Macheka.

[9] Telecontract escalated the matter further to Potraz in a letter dated 2 February 2026. Potraz acknowledged the complaint but advised that it would only respond substantively after establishing Econet`s version. Again, as at 10 February 2026, no response had been received from Potraz, stated Mr Macheka.The situation was commercially deleterious and clearly untenable, averred the deponent. Telecontract was in Mr Macheka`s own words "bleeding revenue" through a 17%

collapse in volumes, apart from the graver threat of customer attrition. Bereft of an immediate solution, Mr Macheka deposed that Telecontract was compelled to approach this court on an urgent basis seeking an interdict.

[10] Econet disputed the material averments in Mr Macheka`s affidavit. In the opposing affidavit deposed to by its General Manager Business Assurance Mr Robert Rusike, Econet acknowledged having blocked traffic from Telecontract`s network. But Mr Rusike insisted that such had been done as a matter of necessity. The deponent contended that the blocked traffic carried all indications of suspicious illicit calls under a strictly prohibited practice called "refiling". He referred to clause 6.1 of the CLA which expressly condemned such practice as a material breach entitling Econet to summarily terminate the agreement.

[11] Mr Rusike further deposed that the matter was not in any way urgent. The parties had engaged extensively over the issue. Most of the flagged calls had been cleared. In that regard, Mr Rusike argued that Telecontract was not likely to suffer any irreparable harm. On the other hand, Econet was contractually obliged to filter all traffic in order to intercept refiling. Refiling was a fraudulent and illicit practice abhorred by the regulator. In any event, future inconsistencies could be addressed on a case-by-case basis via an engagement model. In that respect, the deponent urged the court to find no urgency in the matter.

ARGUMENTS BEFORE THE COURT

[5] I may add that Telecontract provides a fixed telephony service described as "voice over internet or VoIP". I now turn to the arguments. Mr *Ruwitah* (for Telecontract) submitted that the requirements for the grant of an interdict had been satisfied. He cited the Supreme Court decision of *Airfield Investments (Pvt) Ltd v Minister of Lands & Ors* 2004 (1) ZLR 511 (S) where MALABA JA (as he then was) set out the said requirements in the following dictum at 517 C-F; -

"It must be borne in mind that an interim interdict is an extraordinary remedy, the granting of which is at the discretion of the court hearing the application for the relief. There are, however, requirements which an applicant for interim relief must satisfy before it can be granted. In *L F Boshoff Investments (Pty) Ltd* v *Cape Town Municipality* 1969 (2) SA 256 (C) at 267A-F, Corbett J (as he then was) said an applicant for such temporary relief must show;

"(a) that the right which is the subject matter of the main action and which he seeks to protect by means of interim relief is clear or, if not clear, is ***prima facie* established** though open to some doubt;
(b) that, if the right is only *prima facie* established, there is a well-grounded apprehension of irreparable harm to the applicant if the interim relief is not granted and he ultimately succeeds in establishing his right;
(c) that the balance of convenience favours the granting of interim relief; and
(d) that the applicant has no other satisfactory remedy."

The threshold the appellant had to cross was the production of evidence which established the existence in it of *prima facie* rights of ownership in the land at the time the application for interim relief was made. An interim interdict is not a remedy for past invasions of rights and will not be granted to a person whose rights in a thing have already been taken from him by operation of law at the time he or she makes an application for interim relief." : [emphasis added]

[6] Mr *Ruwitah* set forth the following arguments; -**firstly,** that Telecontract had established - not just a prima facie but clear right although it sought a temporary interdict. Counsel referred to clauses 3.12.2,3.13,7.1.2 and 10 of the Interconnection Agreement as confirming such right beyond doubt. Counsel also contended that ss 60 and 61 of the PTC Act further asserted Telecontract`s right in that they prohibited discriminatory behaviour which Econet, as the significant market player ("SMP") was guilty of.

[7] **Secondly,** Mr *Ruwitah* submitted that it was not in dispute that Econet had blocked Telecontract`s traffic in breach of contract. Telecontract allegedly suffered a 17% per cent

decline in traffic volumes. Citing the decision of *Tribac (Pvt) Ltd v Tobacco Marketing Board*
1996 (2) ZLR 52 (S)) counsel emphasised the significance of the threat of reputational damage faced by Telecontract. Damages would not, according to Mr Ruwitah, adequately address the harm that faced Telecontract from the threat of further disruptions.

[8] **Thirdly,** Mr *Ruwitah* submitted that Telecontract had no feasible alternative to turn to. Although the matter had been escalated to Potraz, a verdict was still awaited with no firm indication as to when such would be rendered. Clearly, according to Mr *Ruwitah*, the regulatory solution was inadequate because pending its issuance, Telecontract continued to suffer customer attrition. Drawing from this observation and as his fourth argument, Mr *Ruwitah* indicated that the balance of convenience favoured the grant of the interdict.

[9] In response, Mr *Mbuyisa* (for Econet) argued that the application was ill-conceived and relief sought incompetent. His conclusions issued from two main grounds. Firstly, that the blocked traffic had since been cleared and secondly, that Econet was contractually entitled, and statutorily obliged to filter illicit traffic. Counsel referred to the remarks of the Constitutional Court per MALABA DCJ (as he then was) in *Mayor Logistics (Pvt) Ltd v Zimbabwe Revenue Authority* CCZ 7-14 at page 8-9 that; -

> "It is axiomatic that the interdict is for the protection of an existing right. There has to be proof of the existence of a *prima facie* right. It is also axiomatic that the *prima facie* right is protected from unlawful conduct which is about to infringe it. An interdict cannot be granted against **past invasions** of a right nor can there be an interdict against **lawful conduct**. *Airfield investments (Pvt) Ltd v Minister of Lands& Ors* 2004(1) ZLR 511(S); *Stauffer Chemicals v Monsato Company* 1988(1) SA 895; *Rudolph & Anor v Commissioner for Inland Revenue & Ors* 1994(3) SA 771". [emphasis added]

[10] It was Mr *Mbuyisa*`s further submission that Telecontract faced no harm, neither could it seek to insulate itself against lawful conduct. There was an alternative domestic remedy in that the matter had been placed before Potraz as regulator for resolution. Relying on the

authority of *Affretair (Pvt) Ltd v MK Airline (Pvt) Ltd* 1996 (2) ZLR 15 (S) and *Zimsec v Mukomeka & Anor* SC 10-20, counsel urged the court to permit the administrative body to address the matter as it was best positioned to do so.

[11] Mr *Mbuyisa* contested his colleague`s interpretation of the contractual provisions. The clauses relied upon by Telecontract`s counsel envisaged normal contractual challenges quite different from the contentious issue of refiling. More fundamentally, the factual conspectus before the court did not support the existence of a right on the part of Telecontract. Paragraphs 6.1 to 6.4 of the founding affidavit constituted a clear admission that the issue of refiling was far from certain.

[12] Mr *Mbuyisa* thereafter drew my attention to the letter dated 12 February 2026, directed by Econet to Potraz. This letter set out the basis of Econet`s suspicions that Telecontract was moving illicit traffic inconsistent with its service provider profile. The below table and commentary were annexed to the said letter[1];-

Total VoIP Subscriber Count (POTRAZ Q2 Report)	**Telecontract Total VoIP Subscriber Share %**	**Expected Telecontract Subscriber Count**	**Active/Actual Distinct Caller Number**	**Sum of Call Count**	**Sum of Durations (Mins)**
37,821	**0.40%**	**148**	**18,185**	**281.211**	**1,746,906**

Traffic Analysis at Interconnect CDR[2] Level

- By benchmarking the count of Unique Caller numbers from VoIP operators against reported subscriber count in POSTAL & TELECOMMUNICATIONS ABRIDGED SECTOR PERFORMANCE SECOND QUARTER 2025, it was observed that the count of Telecontract subscribers was a very low percentage compared to the individual CLi count generating traffic into Econet Wireless Zimbabwe.
- According to the report, a 0.4% market share of 37,821 VoIP subscribers would translate to approximately 148 subscribers. During the period of analysis, it was observed that 18,185 Unique Clis were terminating into Econet`s network providing an abnormally high ratio of about 122 CLIs per subscriber."

[13] According to Mr *Mbuyisa*, the assumptions of illicit traffic raised in the above summary were not controverted at all by Telecontract. Neither in its letter to Potraz, nor in the answering affidavit. The obvious conclusions being that a factual basis had been laid before

[1] See page 91 of the record.
[2] Per clause 2.19- "call data records" a log of each call handled by the switch including duration.

the court to justify Econet`s interventions to block traffic in January 2026.On the contrary, Telecontract tendered no explanation for these damning anomalies.

[14] Lastly, Mr *Mbuyisa* attacked the relief sought on the basis that Telecontract effectively prayed for an order directing Econet to do that which it was already doing. The Interconnection Agreement was extant, functional, and it placed on both parties, the obligation to do what the draft order prayed for.

ANALYSIS OF THE ARGUMENTS

[15] Telecontract argued that its rights arose primarily from contract, and additionally from statute-namely the PTC Act. I therefore advert first to the Interconnection Agreement, and second to the PTC Act in addressing the point. The contract is in two parts; - the main agreement comprising of the legal terms and appendices setting out the technical specifications and pricing.

[16] The first part (clauses 1 to 28) sets out the formalities, parties, definitions, purpose of the contract and its performance as well as general legal issues under Part II ranging from breach and termination to warranties, dispute resolution and such others. Mr *Ruwitah* relied upon clauses 3.12.2,3.13,7.1.2 and 10 as embodying Telecontract' s "clear right" to uninterrupted connectivity. I set out clauses 3.12.2, and 3.13 below; -

> "3.12 Neither Party shall, without the consent of the other, make nor permit to be made any alteration, adjustment or addition to:
>
> 13.12.1 The points of interconnections specified in Appendix 1; or
>
> 13.12.2 Any additional Points of Interconnection established pursuant to or any element of its Telecommunications Network, in such a way as would adversely affect or impair the conveyance of messages pursuant to the Interconnections of their respective Telecommunications Networks.
>
> Without in any way limiting the generality of the foregoing provisions of this clause 3.12, each party undertakes to take whatever steps are reasonable possible to minimize service failures and congestion and signaling disturbances, which would affect the ability of the other Party to convey Calls across its Telecommunications Network.

3.13 If the Interconnection between the Telecommunications Network is interrupted for any reason whatsoever, the Party within whose Telecommunications Network such interruption arose shall, at its own costs and expense, restore service as soon as it is reasonably practicable, in accordance with the operation and maintenance procedures in Appendix 3. 6."

[17] The above are overarching provisions setting out the parties` common objectives under the contract. Pursuant to such objectives, the parties also undertook to sustain connectivity as part of a broader mandate to deliver telecommunications within the jurisdiction. In particular, each party was prohibited from engaging in or any conduct or practice inimical to the other`s network.

[18] Whilst counsel from both sides focused on the prohibited practice of refiling (discussed in greater detail below), the wideness of potentially inimical conduct contemplated in clauses 6.1 and 7.1 is pivotal in resolving this dispute. These sub-clauses form part of clauses 6 and 7 respectively, which are identical and reciprocal undertakings by each party to the other. I set out hereunder (i) clause 2.1.25 defining refiling, and (ii) clause 6 (or 7) governing its treatment-including the critical provision (6.3); -

(i) Clause 2.1.25

"International Traffic Refiling"-a practice of terminating international calls whereby an originating operator (A) avoids direct terminating rates in a particular destination (B) by rerouting its traffic through a third party (C). The call is declared as having been originated by C and pays the termination fee applicable between C and B."

(ii)Clause 6 (or 7)

6.1 Telecontract undertakes not to do or permit to be done or omit or permit the omission of anything in relation to its network which may reasonably be expected to:

6.1.1 Cause any damage to the Econet network.

6.1.2 Materially interfere, in any way whatsoever, with the proper and normal operation of the Econet network.

6.1.3 Econet will be entitled to isolate any part of the network that will affect its own network as mentioned in clause 6.1.1 above.

6.1.4 Telecontract undertakes not to manipulate, modify or alter the original call information contained in the SS7 message.

6.2 Telecontract will, as soon as is reasonably practicable after receipt or deemed receipt of a written request to this effect from Econet provide Econet with whatever information and assistance is reasonably necessary to enable Econet to satisfy itself as to Telecontract compliance with its obligation in terms of 6.1; provided that Econet shall, in the exercise of its rights in terms of this clause 6.2, act reasonably, and provided further that Econet will not, in the exercise of such rights, do anything which may inhibit or interfere with the proper and normal operation by Telecontract of its network or with the provision of its services to its customers.

6.3 Refilling is completely prohibited. Any identified refilling would entitle Econet to immediately terminate interconnection with Telecontract. Any refilled traffic would attract an immediate premium on the value of the refilled traffic based on international termination rates. The premium would be determined but initial agreements are that this should stand at 20% or the Standard Chartered MLR PLUS 5%, whichever is higher. the refiling party would be reported to the regulator who would levy additional penalties in terms of the Postal and Telecommunications (Penalties) Regulations, 2008 [Statutory Instrument 162 of 2008]

[19] The above contractual clauses underpin the earlier stated objectives by the parties to sustain connectivity in the provision of service. In particular, clause 6.3 expressly prohibits the illicit practice of refiling. But the pointed question becomes; - was the blocked traffic refiling? This question now brings me to the technical section of the Interconnection Agreement. Clause 10.2 dealing with "operational liaison" provides for the crafting of appendices to address the following technical matters; -

10.1 The Parties shall consult together regarding the operation and implementation of this Agreement and shall use their best endeavors to resolve any problems arising from such consultation or otherwise encountered in relation to this Agreement.

10.2 With prejudice to the provisions of clause 10.1, the Parties shall, within 20 days of the Signing Date appoint a representative and notify the other Party in writing of the

identity of such appointee. Such representative shall, together with the representative of the other Party, be responsible for overseeing the day-to-day practical implementation of this Agreement including, without limitation, the following matters:

10.2.1 Numbering
10.2.2 Physical and electrical interface(s);
10.2.3 Provisioning (including commissioning);
10.2.4 Transmission
10.2.5 Synchronisation;
10.2.6 Signalling;
10.2.7 Maintenance
10.2.8 Call Accounting;
10.2.9 Augmentation of capacity;
10.2.10 Prevention of fraud;
10.2.11 Malicious call tracing;
10.2.12 New or modified features and services including time scales for implementation; and
10.2.13 Any other technical and operational matters which may arise from time to time."

[20] Could the parties not resort to the technical schedules in a bid to specifically condemn or clear the traffic? The point behind this analysis of the contractual clauses is to try and establish why neither party identified a specific clause which could have decisively resolved whether the blocked traffic constituted refiling. Both counsel steered clear of the technical appendices and instead sought to find answers to a technical definition in the legal provisions.

[21] Mr *Mbuyisa* did make an attempt to proffer a technical explanation by reference to the letter from Econet to Potraz and the table and excerpt set out above. A reading of the matters dealt with therein indicates that the author was making a technical prognosis and deductive conclusion that the volumes suggested rather than ascertained the existence of refiling.

[22] Despite the reasoning accompanying it, the conclusion nonetheless forms a presumption which I found undesirable in disputes of this nature. Based on the issues traversed by the

contractual purview, the issue of whether or not the January 2026 traffic constituted refiling was capable of precise and definitive resolution. A type of conclusive proof certification protocol to determine whether the traffic in question constituted refiling. The next issues to consider becomes; - since Econet could not vouch that the blocked traffic was illicit, and Telecontract could not prove that it was not, does that warrant the issuance of the interdict?

[23] Not quite, because firstly, the January 2026 blockage constituted past conduct which cannot on its own, form the basis for the grant of an interdict. Additionally and in any event, Econet fervently contested the legitimacy of the volumes of traffic generated by Telecontract. This protest came in the form of allegations of breach, on the part of Telecontract, of clause 6.1 of the Interconnection Agreement.

[24] On the same aspect, I must remain conscious of the fact that Telecontract is in effect, seeking the remedy of specific performance under the aegis of an interdict. In that regard, in my consideration of the discretionary relief sought, I am inclined to inquire as a basic consideration, whether Telecontract performed its own part of the contract. (See *Savanhu v Marere NO & Ors* 2009 [1] ZLR 320 (S) at 325 A-C). I will revert to this aspect further when dealing with the balance of convenience.

[25] Lastly, I note that in the papers before me, Econet raises two issues regarding the unblocked traffic, firstly that investigations were still underway to assess its legitimacy. Secondly, that the traffic was unblocked as a matter of convenience rather than concession. Against these two factors is the common cause recognition that the matter has since been escalated to Potraz for regulatory intervention.

[26] This observation ushers in the argument of regulatory or administrative prerogative raised by Mr *Mbuyisa*. I comment as follows; - to begin with, Econet did not object to this court`s exercise of jurisdiction. It merely intimated on the desirability of deferring to Potraz as the regulator was better placed to render a technical adjudication of the matter. I also take into account the exasperation felt by Telecontract over the regulator`s perceived delay in addressing the dispute.

[27] My position is that clearly, as noted by PATEL JA (as he then was) in *Zimsec v Mukomeka & Anor* (supra), there are certain matters that are best left to the technical expertise of administrative bodies. I am mindful of the distinction between Zimsec, where the

administrative body had issued a decision, and the present matter where Potraz has not. In concluding the question of Telecontract`s clear right, I recognise the following factors; -

[28] Under the Interconnection Agreement, Telecontract does indeed enjoy the right to connectivity. Telecontract`s right was however, tempered by a reciprocal obligation under clause 6.1. Under that provision, Telecontract was prohibited from engaging in, or suffering any activities deleterious to Econet`s network.

[29] This being additional to clause 6.3 which barred refiling. These being the provisions Econet relied on in justifying the blockage of Telecontract`s traffic in January 2026. Econet robustly contested Telecontract`s allegations of breach and insisted that it acted lawfully. Did Econet act improperly in doing so?

[30] Whether either party breached the contract (Telecontract by engaging in refiling, and Econet by improperly blocking traffic) is a matter that cannot be instantly ascertainable from the contract and would require a technical arbiter to resolve. I note however, that each party relayed their version of events to the regulator Potraz.

[31] The same cross-allegations of misconduct were also placed before this court. Mr *Mbuyisa* argues and correctly so-that Econet`s answer to Telecontract`s allegations was not specifically controverted in the answering affidavit. This aspect is material to the determination of whether Telecontract demonstrated the existence of a prima facie right.

[32] The test enunciated in *L F Boshoff Investments (Pty) Ltd* v *Cape Town Municipality,* which was applied in *Airfield Investments v Minister of Lands& Ors* has consistently guided courts in the determination of applications for interdicts in the jurisdiction. (See the recent Supreme Court decision of *Cheza v Minister of Lands & Ors* SC 109-24).

[33] A key component of the test is what constitutes a prima facie right open to some doubt. This court, per my brother TAKUVA J approached the matter as follows in *Zindodyeyi K & Anor v Aspinal Investments (Pvt) Ltd & 2 Ors* HB 239 -16 at pages 15 to 16; -

> "C. B. Prest, *The Law and Practice of Interdicts* Juta 1993 at page 52 explains the significance of a *prima facie* right in an application for an interdict. He states;

"Interdicts are based upon rights, rights which in terms of the substantive law are sufficient to sustain a cause of action. Such right may arise out of contract, or a delict; it may be founded in the common law or on some or other statute; it may be a real right or a personal right. The applicant for an interlocutory interdict must show a right which is being infringed or which he apprehends will be infringed, and if he does not do so, the application must fail. An applicant must establish 'some just right'. It must not be a mere moral right; it must be a strict legal right."

This therefore is the threshold that must be crossed, and a failure so to do means that an applicant cannot succeed in his claim. The onus of proving such a *prima facie* right rest on the applicant. It must be proved on a balance of probabilities. As regards the meaning of the words *"prima facie* case", Prest states on p 55 of the same work;

"If the correct meaning, it is submitted is that an applicant is required to furnish proof which if uncontradicted and believed at the trial, would establish his right. The use of the phrase '*prima facie* established though open to some doubt', however, indicates that more is required than merely to look at the allegations of the applicant, but something short of a weighing up of the probabilities of conflicting versions is required. What then is the approach of the court to be in the face of a dispute of fact on the papers before the court? The proper manner of approach is to take the facts set out by the applicant, together with any facts set out by the respondent which the applicant cannot dispute, and to consider whether, having regard to inherent probabilities, the applicant should on those facts obtain final relief at the trial. The facts set up in contradiction by the respondent should then be considered. If serious doubt is thrown on the case of the applicant, he could not succeed in obtaining temporary relief, for his right, *prima facie* established, may only be open to 'some doubt'. (my emphasis)

In order to determine whether the applicant has made out a *prima facie* case, the court inquires into whether he has discharged the onus resting upon him by the affidavits placed before the court."

[34] Applying the above guidance, my conclusion is that Telecontract`s right under the contract faced not just competing rights from its counter party, but robust contestations on whether such were infringed. This finding being additional to the absence noted above, of the

requisite and conclusive technical position on whether or not refiling occurred- a matter yet to be determined by Potraz.

[35] On the same aspect of prima facie rights, reference was also made in argument to the obligations placed on both parties in terms of ss 60 and 61 of the PTC Act. Section 60 is a general provision obliging a licenced telecommunications operator to observe the terms of its licence as well as any regulations. No further detail was furnished in argument regarding the conditions of licence nor applicable regulations.

[36] My presumption being that such would however, be along the lines of good conduct matters set out in clauses 6 and 7 of the Interconnection Agreement. Section 61 prescribes the matters to govern interconnection agreements between parties. It forms in my view, yet another basis to defer to the wisdom of Potraz as such matters are within its regulatory purview.

[37] I am thus not satisfied that Telecontract has laid sufficient basis to confirm the existence of a clear right. The matter would ordinarily end here but there are further grounds militating against the relief sought. The balance of convenience favours deferring to the jurisdiction of Potraz to examine the matter and address it accordingly.

[36] In the same vein, having regard to the time-lapse between January 2026 and today, Potraz becomes the proper forum to offer the most efficacious remedy. In stating this I am also mindful of Potraz` responsibilities and obligations to the parties in terms of the PTC Act as well as the Administrative Justice Act [*Cap 10:28*].

DISPOSITION

[37]. In view of those dispositive findings, I deem it unnecessary to determine the point raised by Econet on the alleged incompetency of the relief sought against the causa pleaded. The application cannot succeed for the reasons set out above. I am inclined to let each party bear its own costs for the reason that in essence, this is a matter that ought to have started and ended between the parties and Potraz. I will thus depart from norm and accordingly order that; -

1. The application be and is hereby dismissed.
2. Each party to bear its own costs.

Coghlan, Welsh and Guest-applicant`s legal practitioners

Mtetwa and Nyambirai-first respondent`s legal practitioners

[CHILIMBE J_____22 March 26]